

Umamaheswari vs R. Kalimuthu on 8 January, 2021

Author: R.Subramanian

Bench: R.Subramanian

TR.CMP(MD).No.28

BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

DATED: 08.01.2021

CORAM :

THE HONOURABLE MR.JUSTICE R.SUBRAMANIAN

TR.CMP(MD).No.286 of 2020 and
CMP(MD).No. 6371 of 2020

Umamaheswari

.. Petitioner

Vs.

R. Kalimuthu

... Respondent

Prayer: Transfer CMP filed under Section 24 CPC to withdraw
HMOP.No.106 of 2020 on the file of the Sub Court, Devakottai,
Sivagangai District and transfer the same to the Sub Court, Thanjavur
District.

For petitioner : Mr.A. Arun Prasad

For respondent : Mr.D. Venkatesh

<http://www.judis.nic.in>

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TR.CMP(MD).

ORDER

The petitioner / wife seeks transfer of HMOP.No.106 of 2020, filed by the respondent / husband seeking divorce under Section 13(1)(ia) and (ib) of the Hindu Marriage Act, 1955

2. The petitioner / wife is the resident of Periyamayagipuram Village, Peravoorani Taluk, Thanjavur District. The respondent / husband is the resident of Kandanur, Karaikudi Taluk of Sivagangai District.

3. The ground on which the transfer is sought for convenience of the wife.

4. Though the prayer is for transfer to Sub Court, Thanjavur, considering the distance between Periyamayagipuram and Thanjavur and the convenience of the parties, I am of the opinion that it will be in the interest of the parties to transfer the HMOP to the Sub Court, Pudukkottai, which will be nearer to both parties. The HMOP.No.106 of 2020 is withdrawn from the file of the Sub court, Devakottai and transferred to the file of the Sub Court, Pudukottai. Sub Court, Devakottai is directed to <http://www.judis.nic.in> to transmit the papers to the Sub Court, Pudukottai forthwith.

5. Accordingly, this Transfer CMP is disposed of. No costs. Consequently, the connected Miscellaneous Petition is closed.

08.01.2021 Index : yes/no Internet : yes/no trp Note: In view of the present lock down owing to COVID-19 pandemic, a web copy of the order may be utilized for official purposes, but, ensuring that the copy of the order that is presented is the correct copy, shall be the responsibility of the advocate/litigant concerned.

To

1. The Sub Court, Devakottai, Sivagangai District.

2. The Sub Court, Pudukottai R.SUBRAMANIAN,J., <http://www.judis.nic.in> trp TR.CMP(MD).No.286 of 2020 and 08.01.2021 <http://www.judis.nic.in>